



Procurement Information Notice (PIN) 2025-01

MEMORANDUM FOR ALL FAS ACQUISITION ACTIVITIES

FROM: MARK J. LEE
ASSISTANT COMMISSIONER
OFFICE OF POLICY AND COMPLIANCE (QV)

SUBJECT: Complying with [FAR 39.104](#) when awarding FAS Governmentwide Contracts/Agreements with Information Technology (IT) labor categories

1. What is the purpose of this PIN?

This PIN provides guidance on complying with [FAR 39.104](#) when awarding/administering FAS Governmentwide contracts that require industry to:

1. Map to standardized labor categories or
2. Disclose minimum experience or educational requirements

Existing FAR requirements promote the use of performance-based acquisitions and skills-based solutions in FAS Governmentwide solicitations including Information Technology (IT) services.

2. Who does this PIN apply to?

This PIN applies to all FAS acquisition activities issuing solicitations and awarding/administering FAS Governmentwide contracts, *e.g.*, Multiple Award Schedules (MAS), Multiple Award Contracts (MAC) and Governmentwide Acquisition Contracts (GWAC). The PIN also applies to FAS acquisition activities establishing Governmentwide Blanket Purchase Agreements (BPA) and Basic Ordering Agreements (BOA).

FAS acquisition activities awarding individual task orders under FAS Governmentwide contracts must comply with [FAR 39.104](#) if describing minimum experience or educational requirements required to meet particular contract requirements.

3. What is the background?

FAS Governmentwide solicitations often require that offerors map their proposed IT labor categories to standardized labor categories (*e.g.*, Standard Occupational Codes

(SOC)) or disclose their minimum experience or education requirements to support price evaluation, reporting requirements, etc. Both approaches are permissible, but the acquisition workforce must comply with [FAR 37.102\(a\)\(1\)](#), which encourages the use of performance-based acquisitions, and [FAR 39.104](#), which promotes the use of skills-based solutions when acquiring IT services.

In accordance with [FAR 39.104](#), FAS solicitations may only describe minimum experience or educational requirements for IT labor categories if the Contracting Officer (CO) determines that the needs of the agency -

- Cannot be met without that requirement; or
- Require the use of other than a performance-based acquisition (see [FAR subpart 37.6](#)).

4. Can FAS Governmentwide solicitations require industry to map to Standardized Labor Categories?

Yes, requiring industry to map proposed labor categories to standardized labor categories (e.g., SOC) is consistent with [FAR 39.104](#).

5. Can FAS Governmentwide solicitations require industry to disclose minimum qualifications?

Yes. [FAR 39.104](#), does **not** prohibit an agency from requiring contractors to disclose their minimum qualifications for proposed IT labor categories.

6. What should the minimum qualifications in MAS contracts be based on?

MAS contracts are based on the commercial marketplace. It is common practice for contractors to name labor categories and to establish educational or experience requirements. That is fully acceptable.

7. Are professional IT labor categories exempt from [FAR 39.104](#)?

No. [FAR 39.104](#) does not differentiate between solicitations for professional and non-professional IT labor categories.

8. Can a MAS CO require a degree (e.g., Associates degree) as the minimum education for an IT labor category and have the firm propose their commercial minimum qualifications as substitution methodologies?

No. While you can require offerors to disclose their minimum qualifications, you **cannot** require that an offeror/contractor meet certain minimum experience or educational requirements for IT labor categories, and therefore cannot require that a contractor propose their standard commercial minimum experience and educational requirements

as substitution methodologies. (see [MAS solicitation](#) provision SCP-FSS-001 paragraph (i)(3)(x)(A))

9. Who may make the determination required under FAR [39.104\(a\)](#) to establish minimum experience or educational requirements under performance-based FAS Governmentwide contracts, BPAs, and BOAs?

This determination is most appropriately made by the ordering agency when the requirements and intended acquisition approach are known.

The FAS acquisition activity issuing FAS Governmentwide solicitations, and individual COs awarding and administering FAS Governmentwide contracts or agreements, typically would not make the determination under [FAR 39.104\(a\)](#) when using performance based acquisition methods.

Any [FAR 39.104](#) determinations and the associated MAS solicitation updates are considered a complex change. The requesting FAS acquisition activity must prepare and submit a complex change request package consistent with Policy and Procedure (PAP) 2023-02.

10. **Signature:**

DocuSigned by:

Mark Lee

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Assistant Commissioner

Office of Policy and Compliance (QV)

11/14/2024

Date